

9.—(1) Whereas by reason of the emergencies of the present war members of the Commons House of Parliament have sometimes been, or may hereafter be, required to supply property to, or to permit the use thereof by, a Government department for purposes connected with the present war, it is hereby declared that none of the provisions of the House of Commons (Disqualification) Act, 1782, or of the House of Commons (Disqualifications) Act, 1801, shall be construed so as to extend to a contract or agreement entered into during the present war as to the price or compensation to be paid for any property so requisitioned or taken or as to any other terms on which any property so requisitioned or taken is to be handed over or supplied.

Relief from disqualification for membership of House of Commons in certain cases.

22 Geo. 3. c. 45.

41 Geo. 3. c. 52.

(2) This section shall not affect any legal proceedings instituted before the twenty-first day of February, nineteen hundred and seventeen.

10. This Act may be cited as the Courts (Emergency Powers) Act, 1917.

Short title.

CHAPTER 26.

An Act to enable His Majesty in Council to carry into effect conventions which may be made with Allied and other States as to the mutual liability of His Majesty's subjects and subjects of the Allied and other States to military service.

[10th July 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. His Majesty may by Order in Council, signifying that a convention has been made with a foreign country allied or otherwise acting in naval or military co-operation with His Majesty in the present war (in this Act referred to as the contracting country) which imposes a mutual liability to military service on British subjects in that country and on subjects of that country in the United Kingdom, direct that this Act shall have effect with respect to the contracting country and the subjects of that country, and on any such Order in Council being made, this Act shall have effect accordingly: Provided that—

Carrying out of mutual arrangements with Allied countries as to military service obligations.

(a) No such Order in Council shall be made unless the convention secures to His Majesty's Ambassador or other public Minister in the contracting country power to grant to British subjects in that country exemption from military service, and such Ambassador or Minister shall grant such exemption in any

case where a British subject proves that he is not domiciled in the contracting country, and that before proceeding to the contracting country he was ordinarily resident in some part of His Majesty's dominions other than Great Britain :

- (b) No such Order in Council shall be made unless the convention contains provisions to the effect that British subjects in the contracting country and subjects of the contracting country in the United Kingdom shall, before becoming liable to military service, have an opportunity, if they make an application for the purpose, of returning to the United Kingdom or the contracting country, as the case may be :
- (c) An Order in Council shall not be made until the expiration of thirty days from the date when the convention has been laid before Parliament.

Application
of Military
Service Acts.

2.—(1) Where this Act is so applied with respect to any country, subjects of that country shall, if they have not, within twenty-one days after the convention has been laid before Parliament, made an application in such manner as may be prescribed by a Secretary of State to return to the contracting country, or if, having made such an application, they have failed to avail themselves of an opportunity to do so, be liable to military service under the Military Service Acts, 1916, in the same manner as British subjects; and those Acts shall apply accordingly, subject to the following modifications :—

5 & 6 Geo. 5.
c. 104.
6 & 7 Geo. 5.
c. 15.

7 & 8 Geo. 5.
c. 12.

- (a) The appointed date shall, as respects subjects of the contracting country who come within the operation of the Military Service Acts, 1916 and 1917, on the application of this Act in respect of that country, be the thirtieth day after the date of the Order in Council applying the Act, and as respects subjects of the contracting country who come within the operation of the Military Service Acts, 1916 and 1917, after that date, be the thirtieth day after the date on which they so come within the operation of those Acts, except that when such subjects come within the operations of those Acts by reason of their failing to avail themselves of an opportunity of returning to the contracting country, the appointed date shall be the date of such failure :
- (b) A subject of the contracting country who has not made such an application as aforesaid to return to that country shall have the same rights with regard to exemptions and exceptions conferred by the Military Service Acts, 1916 and 1917, other than the exceptions mentioned in paragraph (1) of the First Schedule to the first-mentioned Act, as he would have if he were

a British subject, and, whether he has made such an application or not, shall be deemed to be within the exceptions under the Military Service Acts, 1916 and 1917, if he is the holder of a certificate of exemption for the time being in force granted by the Ambassador or a duly authorised public Minister of that country in the United Kingdom :

- (c) Regulations issued under the Military Service Acts, 1916 and 1917, may provide for the establishment of special tribunals for dealing with applications or appeals for exemption in respect of men who are rendered liable to military service by virtue of this Act and for the appointment of additional members to tribunals when dealing with such applications or appeals :

- (d) Any British subject arriving in Great Britain from the contracting country after the date of an Order in Council applying this Act to the subjects of that contracting country shall, if not ordinarily resident in Great Britain, be deemed for the purposes of the Military Service Acts, 1916 and 1917, to be ordinarily resident in Great Britain as from the date of his arrival, unless he shows that the part of His Majesty's dominions in which he last resided was some part other than Great Britain.

(2) For the purposes of the limitation on the number of aliens who may serve together at any one time in any corps of the regular forces imposed by section ninety-five of the Army Act, subjects of a contracting country who become liable to military service by virtue of the application of this Act in respect of their country shall not be reckoned in that number.

(3) For the purposes of this Act the expression "convention" includes an agreement.

3. This Act may be cited as the Military Service (Conventions with Allied States) Act, 1917, and shall be included amongst the Acts which may be cited as the Military Service Acts, 1916 and 1917. Short title and citation.

CHAPTER 27.

An Act to provide facilities for expediting confirmation in Scotland to estates of persons serving in Naval or Military Service during the present War.

[2nd August 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :